

The Claremont City Council held a meeting on Wednesday, April 28, 2021, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Mayor Lovett at 6:32 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar:

By telephone:

1-646-558-8656

Webinar ID: 815 2945 7408

Passcode: 739587

If there is a problem getting through to that number, please call 603-542-7002.

Members of the Council present, including location and who was in the room:

Ward I Councilor Andrew O'Hearne – home, alone

At-Large Councilor Dale Girard – Council Chambers, Councilor Stone and public

Assistant Mayor Allen Damren – home, alone

Mayor Charlene Lovett – home, alone

At-Large Councilor Debora Matteau – home, alone

At-Large Councilor Nicholas Koloski – office, alone

Ward II Councilor James Contois – home, alone

Ward III Councilor Jonathan Stone – Council Chambers, Councilor Girard and public

Absent:

At-Large Councilor Erica Sweetser

Also present:

Edward Morris, City Manager

Mary Walter, Finance Director

AGENDA CHANGES

Mayor Lovett said that Councilor Erica Sweetser was resigning from the Council and that this would be her last day.

Mayor Lovett asked to add an item to the agenda, 8H. Process to Fill Vacant Councilor Seat. The seat has to be filled by May 26, 2021.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Damren to accept Councilor Sweetser's resignation.

Mayor Lovett confirmed that Councilor Sweetser would not join the meeting.

Roll call vote:

O'Hearne - no

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-1.

MAYOR'S NOTES

Mayor Lovett was absent from the last meeting, so today she congratulated Fire Chief Burr on receiving the River Valley Community College President's Community Partner Award. She acknowledged the cleanup efforts in honor of Earth Day. She talked about the letter the NH Mayors sent to the Senate Finance Committee listing the revenue losses for each city.

Councilor O'Hearne asked about suspending Council Rules in order to add an item that was not posted.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Damren to suspend Council Rules and to add item 8H to tonight's agenda.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

CITY MANAGER'S REPORT

- **Pleasant Street** – B.U.R. Construction bid \$4,266,246.70 for the project.

- **Dispatch Communications Project** – The City has entered into a consulting agreement with CTA Consulting to help complete a needs assessment, design, procurement and installation for the Dispatch Communication equipment upgrades. We anticipate the project starting in early May with a completion date sometime in 2022.
- **Wastewater Blower Project-** The City's Wastewater Blower Project is nearing final completion. We expect the project to be completed the first week of May.
- **Earth Day-**
Clean Up Day efforts around the City: Rocky's Taqueria event collected 1,100 pounds of trash; Kiwanis event collected 520 pounds of trash; and over 2,300 tires were collected at the Transfer Station.

Ink Factory Green Up Day

May 7th from 9:00 AM to 3:30 PM

There will be a drive-thru supply pick up located at the Ink Factory (13 Water Street)
Prizes, T-Shirts

Lunch will be provided by Red River

This event is in collaboration with the Claremont DPW and area businesses.

He thanked all participants.

- **Adopt-a-Spot-** The City of Claremont has created and introduced an Adopt-a-Spot program. This volunteer program gives citizens, non-profits, businesses, and other organizations the opportunity to show pride in our community by adopting a section of the City and helping to maintain our parks, trails, road sides and open spaces.

This program:

- Reduces litter along roadways and park systems
- Builds community support for anti-litter and roadway beautification programs
- Educates the public about proper disposal of litter
- Enhances the environment and beautifies Claremont parks and roadsides
- Offers groups a project that gives its members the satisfaction of making a contribution to their community. At the same time, it generates publicity for the group's service activities.

Adopt-a-Spot volunteers will spruce up designated areas throughout the City by removing litter and debris, controlling weeds, planting trees and other plants, mulching, and identifying and eliminating hazards.

For more information, please visit www.claremontparks.com

Compost is now available to residents only (no businesses) at the Transfer Station, limit 32-gallon trash bag (or equivalent).

Talked about the easements/access for the Rail Trail. Found the stone markers and measurement for the pin. Kmart plan adopted in 1989, 8-11 feet of encroachment. Liquor store project will pull parking behind the property line. Regarding the 33 feet distance of the rail bed for the Rail Trail appears to be under a portion of the first lane of Washington Street, 27 feet from the curb line of Washington Street to the property line.

- **COVID-19 Update** – At the time this report was written, active COVID-19 cases throughout the State of New Hampshire have been declining with an 18% decrease in the last 7 days. The City of Claremont currently has 26 active cases. The current Sullivan County infection rate is .94%.

As of today, COVID-19 cases continue to decrease; 20 active in Claremont; 0.82% infection rate.

In order to reduce these numbers in Claremont, we must continue our efforts to control the spread of the virus. With the nice weather, and many people either being vaccinated, or in the process of being vaccinated, it is easy to let our guard down. If people stay at home as much as possible, social distance and wear masks when social distancing is not possible, maintain hand hygiene and sanitization efforts, we will hopefully see a reduction in active COVID-19 cases.

Vaccinations are now available for anyone over the age of 16 in the State of New Hampshire (resident or non-resident).

Councilors asked to be informed as new projects begin (i.e. liquor store moving to the front of Hobby Lobby).

CITIZEN'S FORUM

Walter Stapleton, Ward 3 resident and House Representative, gave a legislative update:

- HB54 passed House
- HB315 passed with amendment.
- HB439 Powers of City Councils laid on table
- HB586 20-1 in committee to ITL, laid on the table
- HB154 passed House
- HB588 Tiny home in limbo, no action indicated
- HB274 5% employer contributions ITL
- HB390 amortization ITL
- SB72 15% employer contribution laid on table

Norman Blouin, Ward 3, said the rail bed is for public use, not specific businesses. It should be surveyed and a fence installed all along it. In other states, these rail beds bring people to the community. He changed the subject to the Pleasant Street Project and that the \$4.8 million could be spent on other infrastructure. He said that young people are not staying here and that employment needs to be looked at.

Walt Stapleton, Ward 3 resident and House Representative, also said HB111 was laid on the table.

OLD BUSINESS

Water Rates Discussion

Alex Gleeson, Public Works Director, and Paul Cioffi gave a review of the presentation given at the last Council meeting regarding the water rates.

W&S Rates FY2016-FY2021

(Per Quarterly Billing Period)

Water	# of Custs	FY2016	FY2017	FY2018	FY2019	FY2020	FY2021
Fixed Fee (5/8" meter)		\$ 9.50	\$ 11.15	\$ 13.10	\$ 15.40	\$ 18.10	\$ 18.10
0-1,000 Cu. Ft. Used	902	\$ 2.40	\$ 2.40	\$ 2.40	\$ 2.40	\$ 2.40	\$ 2.40
1,001-12,500 Cu. Ft. Used	2,149	\$ 4.10	\$ 4.80	\$ 5.60	\$ 6.60	\$ 7.80	\$ 7.80
12,501-50,000 Cu. Ft. Used	196	\$ 3.20	\$ 3.80	\$ 4.50	\$ 5.30	\$ 6.20	\$ 6.20
>50,000 Cu Ft Used	38	\$ 2.90	\$ 3.40	\$ 4.00	\$ 4.70	\$ 5.50	\$ 5.50

Sewer		FY2016	FY2017	FY2018	FY2019	FY2020	FY2021
Fixed Fee		\$ 49.00	\$ 49.00	\$ 49.00	\$ 49.00	\$ 49.00	\$ 49.00
All Usage		\$ 5.90	\$ 5.90	\$ 5.90	\$ 5.90	\$ 5.90	\$ 5.90

Usage rates are per 100 Cu. Ft.

**First tier water rates did not increase from FY2016-FY2021.
All other water tiers increased 90% from FY2016-FY2021.**

Assumptions used to develop Claremont Proposed W&S Rates

- 1) Developed using prior rate study conducted by M.F.S.G. 2016
- 2) Operating costs increase 2% per year
 - a. Water costs increase avg 2.35%/yr. since 2014

- b. Sewer costs increase avg 2.03%/yr. since 2014
3) Rates are set to cover full cost

Proposed Claremont Rate Structure

Proposed Claremont Rate Structure

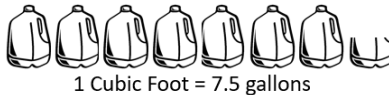
(Per Quarterly Billing Period)

PROPOSED CLAREMONT RATE STRUCTURE PER QUARTERLY BILLING

WATER	# of Cust	FY 2021	Proposed FY 2022	Proposed FY 2023	Proposed FY 2024	Proposed FY 2025	Proposed FY 2026
Fixed Fee (5/8" Meter)		\$ 18.10	\$ 18.60	\$ 19.10	\$ 19.60	\$ 20.15	\$ 20.70
0-1,000 CF Used	902	\$ 2.40	\$ 2.50	\$ 2.60	\$ 2.70	\$ 2.80	\$ 2.90
1,001-12,500 CF Used	2,149	\$ 7.80	\$ 7.20	\$ 7.40	\$ 7.60	\$ 7.80	\$ 8.00
12,501 - 50,000 CF Used	196	\$ 6.20					
Over 50,000 CF Used	38	\$ 5.50	\$ 5.70	\$ 5.90	\$ 6.10	\$ 6.30	\$ 6.50
Flat Water Rate	79	\$ 191.60	\$ 196.75	\$ 202.05	\$ 207.50	\$ 213.10	\$ 218.85

SEWER	# of Cust	FY 2021	Proposed FY 2022	Proposed FY 2023	Proposed FY 2024	Proposed FY 2025	Proposed FY 2026
Fixed Fee		\$ 49.00	\$ 50.25	\$ 51.55	\$ 52.90	\$ 54.30	\$ 55.70
All Usage	2,627	\$ 5.90	\$ 6.10	\$ 6.30	\$ 6.50	\$ 6.70	\$ 6.90
Flat Sewer Rate	11	\$ 179.50	\$ 184.15	\$ 188.95	\$ 193.85	\$ 198.90	\$ 204.05

Usage rates are per 100 Cu Ft (CF)



*Water Fixed fees and Flat Rate increases 2.7% per year.
Hydrants and Fire Lines increase 2% per year.
Sewer Fixed fees and Flat Rate increases 2.6% per year.*

- Showed proposed sample bills
- Key take away freeze year – have to adjust rates moving forward
- Moving Forward
 - The goal is to have a decision before June 30, 2021 and ideally the new proposed rates or another optional model proposed in this study will be adopted with a Council consensus by May 12.
 - The rate recommendation that is being proposed is meant to be fair and equitable for all members of the community, to promote future economic growth, and have the ability to maintain infrastructure stability for the City's water and sewer needs.

Mr. Cioffi said when the five-year plan was implemented, water rates went up 17.5% each year except for the first tier. He got complaints from laundromat owners.

Mr. Morris said City Staff recommended at the first presentation to move to the three tiers. Most complaints he has received have come from restaurants and laundromats. No big industrial users are complaining. There was strategic initiative to use this proposal as shown to help build an economic incentive.

Ordinance 582 Rescinding Article V- Merit System – First Reading

Ordinance #582 – Abolish Chapter 2, Article V of the Claremont City Code

The tenets of Article IV (Merit Plan) of the Claremont City Charter clearly anticipated the creation of a set of “rules and regulations . . . with regard to . . . matters necessary to the maintenance of efficient service and improvement of working conditions [for Claremont employees].” *See Claremont City Charter, Article IV, Section 51.* However, it is also apparent that the Charter intended that these rules would be in the form of policy in that the Charter sets forth, “[t]he rules and regulations shall continue in force subject to amendments submitted to both the council and personnel advisory board by the manager which shall become effective one month after their submission unless vetoed by the council within that period.”(emphasis added). *Id.*

At some point, the Council chose to create a provision in the City Code titled, “Merit System” in which the Council enacted these personnel policies in the form of municipal legislation. In addition to that, the City also created another document, in the form of a policy known as the “Merit Plan”, which seeks to address many of the same personnel policies as found within the City Code. As a result, the City’s administration has found it difficult to deal with two somewhat competing sources for personnel matters. Moreover, personnel policies typically require continual amendments and changes as a result of circumstances or legislative acts by the U.S. Congress or New Hampshire Legislature. By adopting these policies as municipal legislation, the City administration is hampered in adopting any necessary changes, in a timely fashion, as even the slightest change requires an ordinance to be presented to the Council which leads to substantial delay due to the legislative process of the City.

The purpose and motivation of this proposed change is to eliminate the duplication of effort with personnel policy by creating one source document for all such policy and rules. In addition, the use of a policy (as opposed to municipal legislation) is in compliance with the provisions contained within the Claremont City Charter. Furthermore, this new process will allow the City’s administration to more efficiently amend and address personnel policies as those needs may require.

Enactment of this Ordinance will rescind, in its entirety, Article V of Chapter 2 of the City of Claremont’s Code. The City will amend the title of the policy known currently as the “Merit Plan” to the “Merit System” (in keeping with the language of the Charter) and the provisions of Article V (Merit System) are already incorporated into as well as accounted for by this City policy. This change is requested by the City Manager.

Mr. Morris talked about the Merit System (in the Code) and the Merit Plan (separate document). He said it was Attorney Shawn Tanguay’s recommendation to remove the entire Merit System

from the City Code. Prior to 1999, the Merit System was only in the Code. It worked similarly to how Attorney Tanguay is proposing we move forward with the Merit Plan. Any changes proposed to the Merit System would be presented to the Council and if not opposed within 30 days, the change would automatically happen. He spoke with former City Manager Bob Porter and he said at the time, there was a push for the Merit Plan employees to unionize and so the Merit Plan document was created, similar to union contracts.

Attorney Tanguay said the Merit Plan and the Merit System mirror each other. The Merit System was incorporated into the Merit Plan. He doesn't see a reason to maintain those provisions as Code. This way makes it more manageable for the administration. Changes would go before the Council. This is a better way to handle personnel policy. He strongly recommended the Council remove those policies from the Code.

Mayor Lovett asked Attorney Tanguay about whether or not to read the ordinance or just the purpose statement. Attorney Tanguay recommended reading the purpose statement.

Councilor O'Hearne objected to getting advice from the attorney regarding procedure. He stated it was a violation of Council Rules. He would be in favor of suspending Council Rules to not read it, because everything is being taken out of the Code. Councilor Koloski said that the Mayor called upon Attorney Tanguay.

A motion was made by Councilor Contois and seconded by Assistant Mayor Damren to adopt Ordinance 582 Rescinding Article V- Merit System on first reading.

Councilor Contois read the purpose statement, Ordinance #582 – Abolish Chapter 2, Article V of the Claremont City Code.

Roll call vote:

O'Hearne - no

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-1.

Resolution 2021-27 Drinking Water and Groundwater Trust Fund Grant – Public Hearing

WHEREAS, the City wishes to accept funds from the New Hampshire Drinking Water & Groundwater Trust Fund to complete projects relating to the removal of lead lines from the Claremont Water System; and

WHEREAS, in accordance with the "2020 Award Plan", the NH Drinking Water & Groundwater Advisory Commission requires that a funding application for the Construction

Projects Assistance Program include an “authority to submit application” to meet the threshold for project readiness; and

WHEREAS, these actions are in response to the application acceptance; and

WHEREAS, the City presently has lead components in the water lines that provide service to the residents of Claremont; and

WHEREAS, the City wishes to protect the health and wellbeing of its citizens by replacing all the lead water lines:

NOW, THEREFORE, BE IT RESOLVED by the City Council to authorize the city manager, or his designees, to take such actions as may be necessary to borrow \$1,500,000 from the NH Drinking Water State Revolving Fund and accept \$500,000 from the NH Groundwater Trust Fund and enter into grant and loan agreements.

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents, including the loan and agreements, related to this resolution, and the city treasurer is hereby authorized to act on behalf of the Water Enterprise Fund by signing monetary disbursements. *(2/3 Vote Required)*

A motion was made by Assistant Mayor Damren and seconded by Councilor Girard to take Resolution 2021-27 Drinking Water and Groundwater Trust Fund Grant off the table.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

A motion was made by Councilor Contois and seconded by Assistant Mayor Damren to adopt Resolution 2021-27 Drinking Water and Groundwater Trust Fund Grant.

Councilor Contois read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0.

Discussion of Resolution 2020-31 Encourage Wearing Masks in Public Places

Resolution 2020-31 was approved by Council June 10, 2020.

WHEREAS, the Governor of New Hampshire declared a state of emergency on March 13, 2020 due to the COVID-19 pandemic; and

WHEREAS, COVID-19 cases exist in each of the 10 counties in the state; and

WHEREAS, the Center for Disease Control and Prevention (CDC) has stated that wearing a mask and maintaining social distancing is critical to slowing the transmission of this highly infectious virus; and

WHEREAS, preventing transmission is critical to public health and efforts to re-open the economy:

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it hereby strongly encourages the public to wear masks in public places in accordance with CDC guidelines during the COVID-19 pandemic.

Mayor Lovett said this was on the agenda because the Governor had lifted the mask mandate and questions had arisen about where this leaves Claremont.

Councilors had a discussion about rescinding the resolution.

A motion was made by Councilor Koloski and seconded by Councilor Girard to rescind the mask resolution [Resolution 2020-31].

Councilor O'Hearne talked about reconsideration and said this motion is improper and there should be a new resolution to rescind this resolution. He said he would not participate in what he feels is an improper motion. Mayor Lovett said she is aware of the rules and this is not a reconsideration. Councilor Koloski said that at any time a Councilor can make a motion and it can be seconded.

Michael Demars, Ward 3, small business owner, urged the Council to take no action on a mask ordinance.

Joni Wyatt, Ward 2, spoke in opposition of wearing a mask.

Walt Stapleton, Ward 3 resident and House Representative, said he believes it is time to rescind the resolution. He wears a mask in public, even though he is vaccinated. Businesses can set their own safety protocols.

Patrick Adrian, Ward 1, said he doesn't care one way or other which way the Council votes, but he asked why there would be a motion to rescind with no public hearing.

Shane McNeal, Ward 1, spoke in opposition of wearing a mask.

Councilor O'Hearne said a search for Roberts Rules stated that a motion to rescind can only be done if no action had been taken on the original motion, which it was. Councilor Koloski also referenced Roberts Rules and that it may be rescinded by a majority vote provided notice of the motion has been given at a previous meeting or in a call for this meeting.

Roll call vote:

O'Hearne - no

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 6-2.

NEW BUSINESS

County Rebranding

Derek Ferland, County Manager, introduced Penelope Whitman, Economic and Community Development Field Specialist at the University of New Hampshire Cooperative Extension Office in Newport.

Mr. Ferland showed a PowerPoint presentation:

- Regional Identity
 - Answering the "Who are We?" question
- The Background
- Regional Identity: Who are We?
 - Are we Dartmouth-Lake Sunapee?
 - Are we the Upper Valley?
- The Question: What is Sullivan County's nature-based asset
- The Answer: The Sugar River!
- Sunapee Lake is the principal source of the Sugar River
- The Concept

- New Hampshire's Sugar River Region is a place of tradition, creativity, and innovation
- New Hampshire Made Here

Ms. Whitman and Mr. Ferland described the logo, SUGAR RIVER REGION – New Hampshire Made Here: geese, mountain peak, trees, foliage, maple trees, covered bridge, lazy S river flow, smoke stack acknowledges our history.

Ms. Whitman:

- Where Do We Go from Here?
 - Establish Sugar River Region Destination Council
 - Sustainability plan
 - Fund projects
- What is a Destination Council?
 - Facilitates partnerships to achieve a destination's vision by conducting the following activities: strategic planning, tourism product development, promoting the region's cultural heritage and natural resources
 - Possible promotional & product development activities:
 - Recreational events on the Sugar River Rail Trail
 - "Welcome to..." signage, promotional materials, regional trails plan, etc.
- Destination Management & Marketing System (DMMS)

Mr. Ferland said representation is needed from Claremont. Regional Chambers of Commerce (Sunapee, Newport, and Claremont) would be foundational members, also, City Staff and business leaders. For funding, they are pursuing a USDA grant of \$29,000 to be matched with \$29,000 from the County. They have done small group presentations and have had positive responses.

Ms. Whitman said it is time to celebrate the river.

Crossing Agreement – Sugar River Rail Trail for Map 133, Lot 60/313 Washington Street

Nancy Merrill, Planning and Development Director, introduced Don and Peg Chabot who were representing the owners of the Washington Street property. She said 313 Washington Street is just beyond Hurd's property. Maps show the entrance to the property. There is no formal recorded access to the property. There is a buyer interested, but not without an access agreement.

Don Chabot, realtor, said the access is visible. The company wants to make sure they have the proper crossing.

Wayne McCutcheon, Ward 3, shared same historical information about the lot going back to 1916. He said he is a land surveyor and he has plans from the Washington Street widening project showing an asphalt apron to be constructed to this property.

Councilor Koloski made a motion and Councilor Matteau seconded it, but it was the incorrect language, so they withdrew their motion and second.

A motion was made by Councilor Girard and seconded by Councilor Matteau to authorize the city manager, or his designees, to take such actions as may be necessary, including entering into a crossing agreement following compliance review and consultation with the State of New Hampshire, with the owners of 313 Washington Street, Map 133, Lot 60, for the proper management and administration of the City's interests in that portion of the abandoned Claremont Concord Branch railroad right-of-way.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Northern Borders Grant for Arts Center – Public Hearing

Ms. Merrill said the CDA (Claremont Development Authority) would like to apply for a Northern Borders Grant for rehabbing 56 Opera House Square. This will continue to fund the CDA portion of the project.

Melissa Richmond, West Claremont Center for Music and the Arts, said they have been continuing with their capital campaign.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

A motion was made by Councilor Contois and seconded by Assistant Mayor Damren to authorize the City Manager or his designee to execute and perform all actions as may be required on behalf of the Claremont Development Authority/City of Claremont to apply for and, if awarded, accept and expend a grant from the Northern Borders Regional Commission, said funds to be used for the redevelopment of building located at 56 Opera House Square.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes
Lovett - yes
Motion carried 8-0.

Apply for LCHIP Grant for City Hall Windows – Public Hearing

Ms. Merrill said this is a two-year program. LCHIP (NH Land and Community Heritage Investment Program) prefers smaller requests. This grant is for 37 windows in the Opera House. Estimates are approximately \$174,000. If this grant is approved, it will come back to the Council to accept and expend. It does require a 50% match.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to authorize the City Manager or his designees to execute and perform all actions as may be required to apply for LCHIP funding for the purpose of City Hall window restoration. Upon notice that the Project has been selected, the Council will entertain a resolution to raise and appropriate funds for the Project, of which 50 percent shall be reimbursed to the City from LCHIP funding.

Roll call vote:
O’Hearne - yes
Girard - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0.

Claremont Senior Center PILOT Request

Mr. Morris said he worked with Jim Contois as the acting Executive Director of the Claremont Senior Center. Instead of a five-year agreement, because of COVID and the Center’s inability to rent out space, the Center and the City agreed to a \$500 PILOT (Payment in Lieu of Tax) for one year and to reevaluate next year.

Stephan Hamilton, Interim Assessor, said this is the practical way to proceed because of the COVID challenges. He recommended this as a proper course of action.

Councilor Contois said it is unknown if the Center applied for ARPA (American Rescue Plan Act) funds as grants are handled by the Treasurer at the Center. Their income is substantially down because of the pandemic

A motion was made by Assistant Mayor Damren and seconded by Councilor Girard that the Claremont City Council, pursuant to RSA 72:23n, approves the proposed Payment in Lieu of Tax (PILOT) agreement between the City of Claremont and the Claremont Senior Center, Inc. for \$500 for one year. The City Council authorizes the City Manager or his designees to take all such actions as may be necessary to execute said PILOT Agreement, and implement this motion in accordance with state law and regulation.

Councilor Contois said at the time of the negotiation, he was the Interim Executive Director, but he is not now. He will abstain from voting.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - abstain

Stone - yes

Lovett - yes

Motion carried 7-0, 1 abstain.

Resolution 2021-28 Apply for a Northern Border Regional Commission Grant in the Amount of \$325,000 to Install a Solar Array System at the Water Treatment Plant – Public Hearing

WHEREAS, the City operates the Water Treatment Plant at 196 Winter Street and wishes to increase the energy efficiency of the plant; and

WHEREAS, the City wishes to also comply with its recent energy audit as well as the with the provisions set in the New Hampshire Department of Environmental Services energy grant; and

WHEREAS, in order to become more energy efficient, the City wishes to install a solar array system at its Water Treatment Plant (the Project) and thus reduce the need for energy; and

WHEREAS, a solar array system would decrease the electric use by 191,000 kW annually; and

WHEREAS, a solar array system would reduce/eliminate the electric costs needed to operate the entire Water Treatment Plant and produce an annual savings of approximately \$31,350.00 and provide the City of Claremont with the unique opportunity of being the only net zero water system in the state.

NOW THEREFORE BE IT RESOLVED by the City Council to authorize the city manager, or his designees, to take such actions as may be necessary to apply for a grant of up to \$400,000.00 from the Northern Border Regional Commission.

BE IT FURTHER RESOLVED to raise and appropriate the amount of \$400,000.00 from the Water Enterprise Fund (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the city manager, or his designees, are hereby authorized to undertake all actions and execute all documents related to this resolution, and, if accepted, that the city manager and the city treasurer are hereby authorized to act on behalf of the Water Enterprise Fund to expend such funds by signing monetary disbursements. *(2/3 Vote Required)*

Alex Gleeson, Public Works Director, clarified that the amount in the resolution should \$400,000, which it was. If awarded, the grant could help make it a net zero facility. It would be the only one in NH. There is a 20% match, but the Northern Borders Commission has been granted the authority to forgive the 20% because Sullivan County is listed as a depressed county. Claremont has been encouraged to apply for that waiver. If the waiver is received, this project will be no cost to the City, if not, \$80,000 would be the City's match in both funds and in-kind services.

A motion was made by Councilor Girard and seconded by Councilor Stone to adopt Resolution 2021-28 Apply for a Northern Border Regional Commission Grant in the Amount of \$400,000 to Install a Solar Array System at the Water Treatment Plant.

Councilor Girard read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Establish Claremont Cultural Resources Ad Hoc Committee

Councilor Koloski said he would like the Council to develop this committee. Proposed make-up of the committee would be a member of the Historic District Commission, member of the Historical Society, a Councilor and two members of the public. He can draft the task of the committee.

8H. Process to Fill Vacant Councilor Seat

Mayor Lovett said the vacant Council seat would need to be filled before or at the May 26 Council meeting. Councilors agreed to use the same process that was used in January. Mayor

Lovett said the discussion about the interview questions can be revisited at the next meeting. The City Manager's office will post the vacancy notice tomorrow.

COMMITTEE REPORTS

None.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski:

- Would like information about a grant writer addressed before the budget discussion.
- Regarding the Transfer Station, wants to know what the City's legal responsibility is to providing trash service to citizens, also, moving employees to other areas and closing the Transfer Station.
- Planning and Development processing code violations in a timely manner, meeting the needs regarding permits and inspections; is another person needed.
- Regarding IT: is pay sufficient; can services be contracted out if IT can't keep up.
- TV in Central Collections for the solar array is still off and it is still in Central Collections.
- Regarding trash services for departments: He saw that the Fire Department has two Casella toters.

Councilor Matteau:

- Wants to approve minutes at the first and second meetings of the month.
- List of streets and roads that have been paved, what was accomplished with current year's paving budget, how many feet or miles of road have been paved, cost, plan/list of roads for next year's budget including how prioritized.

Regarding Council minutes, Councilors agreed they wanted to approve draft minutes at the two regularly scheduled meetings of each month.

Councilor Koloski:

- Review having Department Heads at the first meeting of the month.
- Requested having a discussion about putting Council emails on the City's website.

Mr. Morris listed the action items:

- Work with IT regarding the audio issues in Council Chambers
- Contact Councilor Koloski for more information regarding his request for a grant writer
- Legal requirements regarding the Transfer Station
- Benefits to Public Works if the Transfer Station were closed
- Whether or not the City has enough Inspectors
- What contracting IT services could look like, if needed
- Check with Fire Department regarding trash services
- Streets and roads paved last and next year

- Alex Gleeson, Public Works Director, and Jeremy Clay, Assistant Public Works Director, will talk about the paving matrix during their budget discussion
- Approve Council minutes at every regularly scheduled meeting

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:49 p.m., a motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to adjourn.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council